Councilmember McCarthy had comments on agenda items 10f(10) and 10k(1)

MCCARTHY/VISSCHER: TO APPROVE THE CONSENT AGENDA. 4-0-0-0 Motion Passes

11. PUBLIC HEARINGS: *In the Council's discretion, the applicant/proponent of an item may be given up to ten (10) minutes to speak. All other persons may be given up to three (3) minutes to speak on the matter.*

    a. Adopting **Resolution No. 2026-100,** which would submit to City voters a proposed Utility Users Tax Ordinance at the general municipal election held on November 3, 2026, which election was previously called by the City Council pursuant to Resolution No. 2026-71.

Public Comments:

- Phillip Taluban asked has the city's independent bond council issued a written legal opinion concluding that the proposed utility tax qualifies as a general tax under proposition 218? If the utility tax is intended to finance these facilities Why is the tax not legally restricted to those projects? What assurances do voters have that these revenues will continue to be used for the proposed facilities? What interest rate is being assumed What will the annual debt service be? And what is the estimated total principal and interest taxpayers will repay over the life of the bonds? Did the city's financial advisors evaluate alternative financing methods, including phase construction and financing? If so, will that analysis be released before voters are asked to decide on this matter?
- David Morehouse spoke about where he moved from and noted that most major developments within the city would pay for a new school, or new firehouse and not burden the taxpayers.
- May Holland Dungo supports the UUT measure for the new police, fire and city hall buildings.
- Ana Luz Acevedo-Cabrera agrees with the gentleman here in regard to adding more taxes to taxpayers. Questioned if there are other alternative ways to get the funding for this expansion without raising taxes. Need an order of priority of what needs to be built first.
- Denise Turley commented on previous UUT having a sunset date.
- Dan Amadeo concerned about perception management in order to get the UTT passed. Voted in favor of Measure U in 2024 but this is too much of a blank check. Agrees with what the speakers said, how do you guarantee that's where the money's going to go? Commented on the proposed luxury hotel tax incentive. Commented on Mayor and Council salary increases. Asked about getting arguments against the measure on the ballot.
- Rabecca McCallon spoke on the current condition of the existing police and fire structures and the need for new. Concerned about where all our money has gone with all the new development taking place. Was no money put away for the expansion to expand for our public safety?

Council discussed the Ballot Question, asked to change "EMT" to "paramedic", and to add in the draft ordinance "Day" under definitions.

DELGADO/BIALA: THAT WE ADOPT THE RESOLUTION BEFORE US, TO SUBMIT TO THE CITY VOTERS A PROPOSED UTILITY TAX ORDINANCE AT THE GENERAL MUNICIPAL ELECTION ON NOVEMBER 3, 2026; AND THAT WE DIRECT STAFF TO COME BACK WITH MODIFIED LANGUAGE TO INCLUDE A 30-YEAR SUNSET AND SOME SPECIFIC LANGUAGE REGARDING CITY BUILDINGS; AND DESIGNATE COUNCIL MEMBER KATHY BIALA AND MYSELF BRUCE DELGADO BE THE DESIGNATED COUNCIL MEMBERS FOR THE BALLOT MEASURE ARGUMENT. 4-0-0-0 Motion Passes.

b. ~~Adopting Resolution No. 2026-, approving amendments to the Downtown Vitalization Specific Plan in response to recommendations from the Planning Commission and the recommendations of a market feasibility analysis prepared by consulting firm HDL ECONSolutions and determine that said amendments to the Downtown Vitalization Specific Plan are subject to exemptions from environmental review in accordance with Sections 15183 and 15061(b)(3) of the CEQA Guidelines~~. **Continued to August 5, 2026**

12. OTHER ACTIONS ITEMS OF THE SUCCESSOR AGENCY TO THE FORMER MARINA REDEVELOPMENT AGENCY: *Action listed for each Agenda item is that which is requested by staff. The Successor Agency may, at its discretion, take action on any items. Members of the public may be given up to three (3) minutes to speak.*

13. OTHER ACTION ITEMS: *Action listed for each Agenda item is that which is requested by staff. The City Council may, at its discretion, take action on any items. Members of the public may be given up to three (3) minutes to speak.*

Note: No additional major projects or programs should be undertaken without review of the impacts on existing priorities (Resolution No. 2006-79 – April 4, 2006).

a. Adopting **Resolution No. 2026-101**, approve the Employment Agreement between the City of Marina and Matt Mogensen for the position of City Manager, effective July 8, 2026, with a mutually agreed-upon start date to take effect in July or August 2026; and adopt the accompanying City Manager Salary Schedule to ensure compliance with California Public Employees' Retirement System (CalPERS) compensation reporting requirements; and authorize the Mayor to execute the Employment Agreement on behalf of the City.

Public Comments:

- Brad Imamura asked where to find the new city manger contract and does it include the full compensation.
- Mike Moeller welcomed Matthew Mogensen back to the city.
- Denise Turley welcomed Matt back to the city.

BIALA/VISSCHER: TO ADOPT RESOLUTION NO. 2026-101, APPROVE THE EMPLOYMENT AGREEMENT BETWEEN THE CITY OF MARINA AND MATT MOGENSEN FOR THE POSITION OF CITY MANAGER, EFFECTIVE JULY 8, 2026, WITH A MUTUALLY AGREED-UPON START DATE TO TAKE EFFECT IN JULY OR AUGUST 2026; AND ADOPT THE ACCOMPANYING CITY MANAGER SALARY SCHEDULE TO ENSURE COMPLIANCE WITH CALIFORNIA PUBLIC

EMPLOYEES' RETIREMENT SYSTEM (CALPERS) COMPENSATION REPORTING REQUIREMENTS; AND AUTHORIZE THE MAYOR TO EXECUTE THE EMPLOYMENT AGREEMENT ON BEHALF OF THE CITY. 4-0-0-0 Motion Passes

b. Adopting **Resolution No. 2026-102**, approving the authorization of 1) Submittal of an application for installation of new signage at the subject site; and 2) Rebranding from Shell Oil to Gulf Oil. ***Continued from June 16, 2026***

Public Comments: None received

Council discussed responsibility of the property maintenance.

BIALA/VISSCHER: TO ADOPT RESOLUTION NO. 2026-102, APPROVING THE AUTHORIZATION OF 1) SUBMITTAL OF AN APPLICATION FOR INSTALLATION OF NEW SIGNAGE AT THE SUBJECT SITE; AND 2) REBRANDING FROM SHELL OIL TO GULF OIL. 4-1(McCarthy)-0-0 Motion Passes

c. ~~Receive a presentation on past amendments to the Council Rules, (2) further amendments and refinements to such Rules; and (3) providing direction to City Attorney and Staff on other refinements or amendments to such Rules~~. ***Continued from May 5, 2026***

d. ~~Open public hearing and conduct the first reading of Ordinance No. 2026-, adding Chapter 1.16 (Custody and Use of City Seal, City Logo, and City Insignia) to Title 1 (General Provisions) of the Marina Municipal Code; waive further reading; and introduce the ordinance~~. ***Continued to from June 16, 2026***

14. COUNCIL & STAFF INFORMATIONAL REPORTS:

a. Monterey County Mayor's Association [Mayor Bruce Delgado]

b. Council reports on meetings and conferences attended (Gov't Code Section 53232).

15. ADJOURNMENT: The meeting adjourned at 10:30 P.M.

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Anita Sharp, Deputy City Clerk

ATTEST:

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Burce C. Delgado, Mayor

DRAFT

Agenda Item: **10b(3)**
City Council Meeting of
August 5, 2026

ACTION
MINUTES

Wednesday, July 15, 2026 **6:00 P.M. OPEN SESSION**

SPECIAL MEETING
CITY COUNCIL

THIS MEETING WILL BE HELD IN PERSON AND VIRTUALLY (HYBRID).

Council Chambers
211 Hillcrest Avenue
Marina, California

AND

Zoom Meeting URL: https://zoom.us/j/730251556
Zoom Meeting Telephone Only Participation: 1-669-900-9128 - Webinar ID: 730 251 556

1. CALL TO ORDER: The meeting was called to order at 6:00 P.M.

2. ROLL CALL & ESTABLISHMENT OF QUORUM: (City Council, Airport Commissioners, Marina Abrams B Non-Profit Corporation, Preston Park Sustainable Communities Nonprofit Corporation, Successor Agency of the Former Redevelopment Agency Members and Marina Groundwater Sustainability Agency)

   MEMBERS PRESENT: Jennifer McAdams, Brian McCarthy, Kathy Biala, Mayor Pro-Tem/Vice Chair Liesbeth Visscher, Mayor/Chair Bruce C. Delgado

3. MOMENT OF SILENCE & PLEDGE OF ALLEGIANCE (Please stand)

4. CONSENT:

   a. Adopting **Resolution No. 2026-103**, authorizing staff to proceed with the public bidding process for the "Rehabilitate Runway 11-29" project at Marina Municipal Airport.

Public Comments: None received

MCCARTHY/MCADAMS: TO ADOPT RESOLUTION NO. 2026-103, AUTHORIZING STAFF TO PROCEED WITH THE PUBLIC BIDDING PROCESS FOR THE "REHABILITATE RUNWAY 11-29" PROJECT AT MARINA MUNICIPAL AIRPORT.
5-0-0-0 Motion Passes

5. OTHER ACTION:

   a. Adopting **Resolution No. 2026-104**, which would amend the ballot question for the proposed Utility Users Tax Ordinance that the City Council previously placed on the ballot for the November 3, 2026, general municipal election.

Public Comments:

- Athena Burciaga suggested keeping the UUT below 7%, including a sunset date, and providing exemptions for those over 70. The UUT should be opposed during these difficult economic times. Commented on the hotel TOT incentive.
- Dan Amadeo commented on the June 16th meeting and the FM3 presentation. Is the city going in the right direction? It's not a good time to do a tax. Why not wait until you have more information to make a better decision? Can we trust the council to keep the promise on where this money is going to be spent?
- Linda commented on the ballot question language being more specific or clearer regarding low-income and reduced rates and audits.
- Andrea Balasteri spoke about what a 7% UUT would do to her household as well as other in the community on fixed incomes or low paying jobs.
- Rick B spoke about residents barely getting by as it is and having 7% added to all the utility bills is too much. Utilities and rents are increasing but the cost of living isn't.
- Ana Luz Acevedo-Cabrera stated that critical services and infrastructure are needed but the timing needs to be separated out. Suggested making the bond about police and fire. Reassess your priorities, less on parks and use that money for a new city hall. Commented on the proposed 7% UUT being difficult on most residents.

Council reiterated that the Hotel TOT tax incentive is based on future TOT the city will share with the developer and has no bearing on the proposed UUT. They discussed the need for new buildings and taking this measure to the voters for a final vote.

MCCARTHY/BIALA: TO ADOPT RESOLUTION NO. 2026-104, WHICH WOULD AMEND THE BALLOT QUESTION FOR THE PROPOSED UTILITY USERS TAX ORDINANCE THAT THE CITY COUNCIL PREVIOUSLY PLACED ON THE BALLOT FOR THE NOVEMBER 3, 2026, GENERAL MUNICIPAL ELECTION. 4-1(Delgado)-0-0 Motion Passes

6. ADJOURNMENT: The meeting was adjourned at 7:00 P.M.

_____
Anita Sharp, Deputy City Clerk

ATTEST:

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Bruce C. Delgado, Mayor